

24STCV05840 24STCV05840

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV05840 Hearing Date: August 25, 2026 Dept: 515

Charney v Fink, 24STCV05840

Background

On July 14, 2026, the Court granted Defendant Keith A. Fink's ("Defendant") motion to compel responses to form interrogatories, special interrogatories, and document requests from Plaintiff Dov Charney ("Plaintiff"), and Defendant's request for monetary sanctions. The Court ordered Plaintiff to serve verified, Code-compliant written responses, with no objections within 10 days of the order, serve all responsive documents within 10 days of the order, and for Plaintiff and his counsel to pay a total of \$4,550.40 in monetary sanctions to Defendant within 30 days of the order.

Defendant now moves for terminating, issue, evidentiary, and/or \$6,636 in monetary sanctions jointly and severally against Plaintiff and his counsel, on the grounds that Plaintiff failed to serve verified responses to the discovery requests and failed to produce any documents.

Analysis

Here, Plaintiff served responses to the interrogatories late, after the Court's deadline of July 24, 2026. The responses, attached as Exhibit 6, did not include verifications. Without proper code compliant verifications, the responses "are tantamount to no responses at all." (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636.) Plaintiff provided no response to the RFPs.

Plaintiff's opposition attaches as Exhibits A and B verified

amended responses to the form and special interrogatories. For the interrogatories, Defendant can pursue the IDC process if he believes the (now) verified written responses are deficient.

Defendant's reply purports to attach Plaintiff's response to the RFPs that Plaintiff served on or around July 31, 2026 (Ex. 12), but the version filed only has the first two pages and the rest of the exhibit just says "response to Production of Document Number" and then different numbers. Exhibit 13 is Plaintiff's amended response attaching a purported verification that does not comport with the verification requirement set forth in Code of Civil Procedure Section 2015.5. As such, it is tantamount to no response at all. Plaintiff has also produced some documents. For the document requests, Plaintiff continues to be non-compliant with the Court's July 14 order to provide verified written responses. If and when Plaintiff provides a Code-compliant verification, Defendant can pursue the IDC process if he believes the substance of the responses is lacking and/or Plaintiff has not produced the documents he said he would produce.

On this record, the Court does not find grounds to issue terminating, issue, or evidence sanctions. Plaintiff has, however, violated the Court's July 14, 2026 order by not serving verified written responses to the RFPs and by serving the verified interrogatory responses late. This constitutes a misuse of the discovery process, and the Court exercises its discretion to order \$6,636 in monetary sanctions jointly and severally against Plaintiff and his counsel. The sanctions are payable to Defendant within 10 days of this order. And to be clear, unless and until Plaintiff fully complies with the July 14, 2026 order, he will remain in violation of the Court's order and potentially subject to further sanctions.